

Court No. - 3

Case :- WRIT - C No. - 18744 of 2011

Petitioner :- Kali Charan

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Rakesh Kr.Singh Chauhan,Neelam Singh Chauhan

Respondent Counsel :- C. S. C.,Rajesh Tripathi

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

On the request of learned counsel appearing for the petitioner, the matter will appear on 7.4.2011 in the supplementary list of fresh cases.

Order Date :- 31.3.2011

S.B.

Court No. - 3

Case :- WRIT - C No. - 18744 of 2011

Petitioner :- Kali Charan

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Rakesh Kr.Singh Chauhan,Neelam Singh Chauhan

Respondent Counsel :- C. S. C.,Rajesh Tripathi

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

The petitioner's contention is that he wants to pay the amount as claimed by the respondents within the time to be specified by the Court and subject to deposit the same the connection of the electricity may be restored.

Clause 6.5 of the U.P. Electricity Supply Code, 2005 makes such provision subject to deposit of entire amount or on the basis of electricity charges calculated on the basis of average electricity bills of the preceding six months, whichever is less and consider the complaint, if any by the competent authority presumably the reconnection thereof on the basis after drawing an inference in respect thereto.

We are of the view since the petitioner is inclined to deposit the entire amount, the same will be deposited within a period of two months from the date of obtaining a certified copy of this order and subject to deposit the same he will make an application for the purpose of restoring electricity connection, upon which the authority concerned after considering all pros and cons will be able to restore the same without delaying the cause but not beyond a period of 72 hours from making such application.

The writ petition is accordingly disposed of, however, without imposing any cost.

Order Date :- 21.4.2011

S.B.